

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12

Honorable Nahal Iravani-Sani, Presiding

Courtroom Clerk, Ryan Nguyen

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2230

DATE: 05/27/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE 2	24CV434339	Daniela Correa et al. v. Steven Rosales, et al.	COMPROMISE OF MINOR'S CLAIM If no objection by any party, the Court will sign the Proposed Order Approving Compromise of Claim for Minor (e-filed with the Court dated 4/23/26.)

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Calendar Line 1

Case Name: *Dee Shisler v. Shelly Koning*

Case No.: 21CV389381

Defendant's Motion for Leave to File Cross-Complaint

Factual and Procedural Background

On October 5, 2021, plaintiffs Dee Shisler and Isabel Shisler filed a complaint against defendant Shelly Koning ("Defendant"), alleging causes of action for: (1) Elder Financial Abuse (2) Breach of Contract (3) Actual Contract (4) Constructive Fraud (5) Unjust Enrichment – Assumpsit (6) Conversion (7) Intentional Misrepresentation (8) Negligent Misrepresentation (9) Negligence (10) Quiet Title. Plaintiff Isabel Shisler passed away in 2022 and Dee Shisler ("Plaintiffs") continued the action as Isabel's successor-in-interest. Plaintiffs allege that Defendant must return money they lent to her when she was married to Dee and Isabel Shisler's son, Bryan Shisler.¹

Currently before the court is Defendant's motion for leave to file cross-complaint against third-party Bryan Shisler. Defendant filed written opposition.

Legal Standard

A party may file a cross-complaint without leave before a trial date is set. (Code Civ. Proc., § 428.50, subd. (b); *City of Hanford v. Superior Court* (1989) 208 Cal.App.3d 580, 587.) Where leave is required, the decision rests within the Court's discretion. (*Orient Handel v. U.S. Fid. & Guar. Co.* (1987) 192 Cal.App.3d 684, 701.) Undue delay, particularly where the facts were known or reasonably should have been known earlier, is a proper basis for denial. (*People ex rel. Dep't of Public Works v. Los Angeles* (1960) 179 Cal.App.2d 558, 568.)

Analysis

A party against whom a cause of action has been asserted in a complaint may file a cross-complaint against another person alleged to be liable if the cause of action asserted in the cross-complaint arises out of the same transaction or occurrence as the cause of action in the original complaint. (Code Civ. Proc., § 428.10, subd. (b).) A party can file a cross-complaint against parties other than the plaintiff without leave of court at any time before the court has set a date for trial. (Code Civ. Proc., § 428.50, subd. (b); *City of Hanford v. Superior Court* (1989) 208 Cal.App.3d 580, 587.)

¹ In their 2021 Complaint, Plaintiffs also asserted claims against Defendant regarding a property in San Jose, CA where Plaintiffs previously resided. In her Motion for Leave to File Cross-Complaint, Defendant alleges that proposed Cross-Defendant also bears liability for loans but does not address Plaintiffs' claims regarding real property. Plaintiffs' Opposition papers do not mention Plaintiffs' claims about real property and consequently the court will not address the relevance of those claims to the cross-complaint matter at issue here.